

25STCV35404 25STCV35404

County: los-angeles

Division: Civil Law and Motion

Department: 514

Hearing date: 2026-09-09

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C514%2C09%2F09%2F2026

Source SHA-256: 31d582d97e9cee24d6ba6dd5e14586ea4c159515e9223416cc8b341feed2538f

Case Number: 25STCV35404 Hearing Date: September 9, 2026 Dept: 514

Lawyer v. Malibu Green, Inc.

25STCV35404

Defendants' Motion to Compel Arbitration

Tentative Ruling

The

motion is granted in part.

Background

This case

arises out of an employment relationship.

On December 4, 2025, Melissa Lawyer ("Plaintiff") filed the complaint in this action against Malibu Green, Inc.; Sweet Flower 2, LLC; and Tim Dodd (collectively "Defendants"), asserting causes of action for (1) failure to pay overtime compensation and wages, (2) failure to provide mandated meal periods, (3) failure to provided mandated rest periods, (4) failure to furnish accurate wage statements, (5) failure to timely pay wages, and (6) failure to maintain accurate records.

On January 8, 2026, Defendants filed an answer to Plaintiff's Complaint.

On August 3, 2026, Defendants filed this motion to compel

arbitration. Plaintiffs filed an opposition on August 25, and Defendants filed a reply on September 1.

Trial is set for October 26, 2027.

Legal Standard

The Federal Arbitration Act ("FAA") and California law share many of the same policy objectives with regard to arbitration, including a presumption in favor of arbitrability. (See *Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 971-72.) Under the FAA:

"A written provision in ... a contract evidencing a transaction involving commerce to settle by arbitration a controversy thereafter arising out of such contract or transaction, or the refusal to perform the whole or any part thereof, or an agreement in writing to submit to arbitration an existing controversy arising out of such a contract, transaction, or refusal, shall be valid, irrevocable, and enforceable, save upon such grounds as exist at law or in equity for the revocation of any contract"

(9 U.S.C., § 2.) Under Code of Civil Procedure section 1281, a "written agreement to submit to arbitration an existing controversy or a controversy thereafter arising is valid, enforceable and irrevocable, save upon such grounds as exist for the revocation of any contract."

Code of Civil Procedure section 1281.2 provides, in pertinent part, the following:

"On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party thereto refuses to arbitrate such controversy, the court shall order the petitioner and the respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists, unless it determines that:

(a) The right to compel arbitration has been waived by the petitioner; or

(b) Grounds exist for the revocation of the agreement.

(c) A party to the arbitration agreement is also a party to a pending court action or special proceeding with a third party, arising out of the same transaction or series of related transactions and there is a possibility of conflicting rulings on a common issue of law or fact

(d) ... If the court determines that a party to the arbitration is also a party to litigation in a pending court action or special proceeding with a third party as set forth under subdivision (c), the court (1) may refuse to enforce the arbitration agreement and may order intervention or joinder of all parties in a single action or special proceeding; (2) may order intervention or joinder as to all or only certain issues; (3) may order arbitration among the parties who have agreed to arbitration and stay the pending court action or special proceeding pending the outcome of the arbitration proceeding; or (4) may stay arbitration pending the outcome of the court action or special proceeding."

(Code Civ. Proc., § 1281.2.)

As our Supreme Court has explained:

"[W]hen a petition to compel arbitration is filed and accompanied by prima facie evidence of a written agreement to arbitrate the controversy, the court itself must determine whether the agreement exists and, if any defense to its enforcement is raised, whether it is enforceable. Because the existence of the agreement is a statutory prerequisite to granting the petition, the petitioner bears the burden of proving its existence by a preponderance of the evidence. If the party opposing the petition raises a defense to enforcement—either fraud in the execution voiding the agreement, or a statutory defense of waiver or revocation (see [Code Civ. Proc.] § 1281.2(a), (b))—that party bears the burden of producing evidence of, and proving by a preponderance of the evidence, any fact necessary to the defense."

(Rosenthal
v. Great Western Fin. Securities Corp. (1996) 14 Cal.4th 394, 413.)

The party seeking to compel arbitration “bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence.” (Giuliano v. Inland Empire Personnel, Inc., (2007) 149 Cal.App.4th 1276, 1284.) “In determining whether an arbitration agreement applies to a specific dispute, the court ... should attempt to give effect to the parties' intentions, in light of the usual and ordinary meaning of the contractual language and the circumstances under which the agreement was made.” (Weeks v. Crow (1980) 113 Cal.App.3d 350, 353 [citations omitted].) “To determine whether a contractual arbitration clause requires arbitration of a particular controversy, the controversy is first identified and the issue is whether that controversy is within the scope of the contractual arbitration clause.” (Titolo v. Cano (2007) 157 Cal.App.4th 310, 316.)

In ruling on a petition or motion to compel arbitration, “the trial court sits as a trier of fact, weighing all the affidavits, declarations, and other documentary evidence, as well as oral testimony received at the court's discretion, to reach a final determination.” (Giuliano, supra, 149 Cal.App.4th at p. 1284.)

Discussion

Defendants move to compel arbitration and stay of this action.

The party seeking to compel arbitration bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence. (Engalla v. Permanente Medical Group, Inc. (1997) 15 Cal.4th 951, 972; see 9 U.S.C. § 2 [...an agreement in writing to submit to arbitration an existing controversy arising out of such a contract, transaction, or refusal, shall be valid, irrevocable, and enforceable, save upon such grounds as exist at law or in equity for the revocation of any contract.].) This is usually done by presenting a copy of the signed, written agreement to the court. “A petition to compel arbitration or to stay proceedings pursuant to Code of Civil Procedure sections 1281.2 and 1281.4 must state, in addition to other required allegations, the provisions of the written agreement and the paragraph that provides for arbitration. The provisions must be stated verbatim or a copy must be physically or electronically attached to the petition and incorporated by reference.” (Cal. Rules of Court, rule 3.1330.)

In support of their motion, Defendants submit the declaration of Tim Dodd. Mr. Dodd is a named defendant; he is also the present Chief Executive Officer and co-founder of Defendant Malibu Green, Inc. ("Malibu Green"), and he was the former owner of Defendant Sweet Flower 2, LLC ("Sweet Flower 2"). (Dodd Decl., ¶ 1.) Mr. Dodd states that Malibu Green is the parent company of Sweet Flower Chico, LLC ("Sweet Flower Chico") and was formerly the parent company of Sweet Flower 2. (Dodd Decl., ¶¶ 4, 7.)

Plaintiff was employed by Sweet Flower 2. (Dodd Decl., ¶ ¶¶ 8-9, 11.)

Mr. Dodd states that he is familiar with the policies and procedures for hiring and onboarding employees of Malibu Green and its subsidiaries, including Sweet Flower 2. (Dodd Decl., ¶ 13.) The onboarding process for Plaintiff was completed by Ayesha Wilson, the former Head of Human Resources, using the Würk platform. (Dodd Decl., ¶ 16.)

Mr. Dodd further states, on information and belief, that the Würk platform creates a unique profile for each employee during the onboarding process, secured by a password, and the platform then presents a series of training videos, policies, and other documents that the employee must complete. (Dodd Decl., ¶¶ 17-18, 20.) Mr. Dodd states, again on information and belief, that Plaintiff completed her onboarding privately and electronically signed the arbitration agreement. (Dodd Decl., ¶¶ 14, 18, 20-23 & Exhs. A-B.)

Plaintiff signed the Employment Agreement by hand on February 1, 2024. (Dodd Decl., Exh. A; Lawyer Decl., ¶ 2 & Exh. A.) Paragraph 12 of the Employment Agreement states:

"Any controversy, claim or dispute arising out of or relating to this Agreement, shall be settled by binding arbitration in Los Angeles County, California. Such arbitration shall be

conducted in accordance with and subject to the provisions of the California Code of Civil Procedure relating to arbitration as amended from time to time. If required by law, the Company shall bear the costs of the arbitration, including the arbitrator's fees. Each party shall be responsible for compensating their own attorneys and witnesses unless the arbitrator orders otherwise. If the parties cannot agree upon an arbitrator, the Los Angeles County Superior Court shall appoint the arbitrator. The parties agree to abide by all decisions and awards rendered in such proceedings. Such decisions and awards rendered by the arbitrators shall be final and conclusive and may be entered in any court having jurisdiction thereof as a basis of judgment and of the issuance of execution for its collection. All such controversies, claims or disputes shall be settled in this manner in lieu of any action at law or equity, provided however, that nothing in this subsection shall be construed as precluding bringing an action for injunctive relief or other equitable relief. The arbitrators shall not have the right to award punitive damages or speculative damages to either party and shall not have the power to amend this Agreement."

The Employment Agreement identifies the parties as Plaintiff and "Sweet Flower Fresno," which appears to be Sweet Flower 2.

Defendants have also submitted a document entitled Arbitration Agreement that appears to bear the electronic signature of Plaintiff dated February 26, 2024. (Dodd Decl., Exh. B.) This document states that the parties are Plaintiff are "Sweet Flower Chico," which was not Plaintiff's employer and is not a party to this action. (Lawyer Decl., ¶ 3.)

The Arbitration Agreement provides:

"Except as provided in Paragraph 2 below, any claim, dispute and/or controversy that is justiciable and/or arguably justiciable under any federal, state, or local law, including regarding the terms of this Agreement or any other agreement between the parties, or any alleged breach thereof, as well as any claim, dispute, and/or controversy that in any way relates to or arises from Employee's employment or application for employment, or separation from employment with the Company, whether based on common law, statutory law, regulation, or any other federal, state, or local law which encompasses but is not limited to discrimination or harassment on the

basis of race, sex, age, religion, color, national origin, sexual orientation, disability, and veteran status (including all claims based on Title VII of the Civil Rights Act of 1964, as amended, as well as all other state or federal laws or regulations concerning employment or employment discrimination) and any claim, dispute, and/or controversy against individuals or entities employed by, acting on behalf of, or affiliated with the Company, any of which would otherwise require or allow resort to any court or other governmental dispute resolution forum between Employee and the Company (or its parent entity, owners, directors, officers, managers, employees, and agents) ("Covered Claims"), shall be submitted to and determined exclusively by final and binding arbitration with the American Arbitration Association ("AAA") in accordance with AAA's then-current employment dispute rules, a copy of which may be found at <http://www.adr.org/rules>. The matter shall proceed in the AAA office closest to the place where Employee most recently worked for Company.

The

parties intend the definition of Covered Claims to apply regardless of when any particular dispute between the parties may arise and expressly agree to include within the Covered Claims any disputes that may have arisen prior to the execution of this Agreement, any disputes that may arise after the execution of this Agreement, any disputes that may have arisen prior to Employee's employment with the Company (including any decision whether or not to hire Employee), and any disputes that may arise during or after Employee's employment with the Company.

The

parties agree to pursue any and all Covered Claims individually and waive any rights they may have to pursue said claims as a part of any class or collective action. In that regard, the parties agree that the arbitrator shall have no authority or jurisdiction to hear class or collective claims.

The

parties further acknowledge that their agreement to arbitrate shall be specifically enforceable in any court of competent jurisdiction."

(Dodd Decl., Exh. B.)

Plaintiff denies ever seeing the

Arbitration Agreement before this lawsuit was filed and states that she does not believe the electronic signature is hers.

(Lawyer Decl., ¶ 4.)

"[A]rbitration agreements are creatures of contract." (Ford Motor Warranty Cases (2025) 17 Cal.5th 1122, 1125.) Arbitration is "a matter of consent, not coercion," and the Federal Arbitration Act "does not require parties to arbitrate when they have not agreed to do so. (Volt Information Sciences v. Board of Trustees of Stanford University (1989) 489 U.S. 468, 478-479.) "In ruling on a motion to compel arbitration, the court must first determine whether the parties actually agreed to arbitrate the dispute. General principles of contract law guide the court in making this determination." (Ford Motor Warranty Cases, supra, 17 Cal.5th at p. 1128.) The Court cannot (and does not) apply one set of rules for arbitration agreements and a different set of rules for nonarbitration agreements. (See Quach v. California Commerce Club (2024) 16 Cal.5th 562, 576; Sanchez v. Valencia Holding Co. (2015) 61 Cal.4th 899, 912.

On this record, the Court finds that Defendants have met their burden of showing that the Employment Agreement is a valid contract signed by Plaintiff and Sweet Flower 2.

On this record, the Court further finds that Defendants have not met their burden of showing that the parties entered into the Arbitration Agreement. Plaintiff denies signing it, and Defendants' evidence about Plaintiff's onboarding process and Plaintiff's purported signature is based largely on information and belief. (See Garcia v. Stoneledge Furniture LLC (2024) 102 Cal.App.5th 41, 52-53.)

Having determined, on this record, that there is not a sufficient showing that Plaintiff signed the Arbitration Agreement, the Court need not reach, and does not reach, the other challenges that Plaintiff asserts to the Arbitration Agreement.

The Court now turns back to the Employment Agreement, which, as noted above, contains an arbitration provision. Defendants have met their burden of showing that there is an valid agreement between the parties and that the agreement

contains an arbitration provision. This shifts the burden to Plaintiff to identify a dispute regarding the existence or scope of the agreement or some other defense to enforcement.

On this record, Plaintiff has not done so. Indeed, Plaintiff's opposition focuses almost entirely on the separate contract, the Arbitration Agreement.

Accordingly, the Court will enforce the Employment Agreement according to its terms. The dispute between the parties is within the scope of the arbitration provision in the Employment Agreement. The motion to compel arbitration of the claims of Plaintiff against Sweet Flower 2 is granted. Malibu Green and Tim Dodd are not parties to this agreement, and therefore the motion of these two defendants to compel arbitration is denied.

As the primary defendant in this matter is Sweet Flower 2 – Plaintiff's employer (or, at the least, her primary employer) – the Court exercises its discretion under Code of Civil Procedure section 1281.2, subdivision (d), to compel arbitration between Plaintiff and Sweet Flower 2, and to stay the litigation against Malibu Green and Tim Dodd pending the completion of the arbitration.

Conclusion

The Court GRANTS IN PART the motion to compel arbitration.

The Court ORDERS arbitration pursuant to the Employment Agreement signed by Plaintiff on February 1, 2024, of Plaintiff's claims against Defendant Sweet Flower 2, LLC.

The motion to compel arbitration of Plaintiff's claims against Defendants Malibu Green, Inc. and Tim Dodd is denied.

The Court exercises its discretion and STAYS LITIGATION of Plaintiff's claims against Defendants Malibu Green, Inc. and Tim Dodd.

The Court SETS a
post-arbitration status conference for June 24, 2027, at 8:30 am in Department
514.

The Court ORDERS
the parties to file a written report regarding the status of the arbitration by
no later than June 10, 2027.

Moving party is
ordered to give notice.